

TITLE 477

MEDICAID ELIGIBILITY

CHAPTER 3

APPLICATION PROCESS

001. SCOPE AND AUTHORITY. These regulations govern the services provided under Nebraska's Medicaid program as defined by the Medical Assistance Act, Nebraska Revised Statute § 68-901 et seq.

002. INTERVIEW. An interview is not required for a Medicaid application or renewal.

003. APPLICANT AND CLIENT RIGHTS. All applicants and clients have the following rights:

- (A) The right to have the Medicaid application process and the Medicaid requirements, responsibilities, and benefits reasonably explained by the Department, including by written translations, oral interpretation, and taglines for individuals with disabilities or limited English proficiency;
- (B) The right to have other potential sources of assistance explained by the Department, including, as applicable: income that may be currently or potentially available such as Retirement, Survivors, and Disability Insurance (RSDI), Supplemental Security Income (SSI), or Veterans Affairs (VA) benefits; social and other financial services available through the Department, such as social services, Early Periodic Screening, Diagnosis, and Treatment (EPSDT), and family planning; and receive a referral to other agencies, if appropriate;
- (C) The right to have his or her civil rights upheld. No applicant or client may be subjected to discrimination on the grounds of race, color, national origin, sex, age, disability, religion, political belief, or any other classification protected by law;
- (D) The right to be offered the opportunity to register to vote;
- (E) The right to submit an application or have an application submitted by an authorized representative;
- (F) The right to have his or her application and any personal information treated confidentially according to the applicable privacy laws;
- (G) The right to receive reasonably prompt action on his or her application which is pending. A determination of eligibility must be made by the Department about an application within 45 days of the date the complete and signed application has been received by the Department; except for applications under the disability category, for which a determination of eligibility must be made within 90 days;
- (H) The right to receive adequate notice of any action affecting his or her application or benefit; and
- (I) The right to appeal to the Director for a hearing about any action or inaction regarding his or her application, or failure to act with reasonable promptness. Any appeal must be filed with the Department in writing within 90 days of the decision date.

004. APPLICANT AND CLIENT RESPONSIBILITIES. Each applicant or client is required to:

- (A) Provide complete and accurate information. State and federal law provides penalties that may include a fine, imprisonment, or both, for persons found guilty of making false

statements or failing to report promptly any changes in their circumstances to obtain assistance or services for which they are not eligible;

- (B) Report a change in circumstances no later than 10 days following the change. This includes information regarding:
 - (i) Change or receipt of a resource including cash, stocks, bonds, or a motor vehicle.
Changes in resources do not apply to clients whose eligibility is determined using modified adjusted gross income (MAGI)-based methodology;
 - (ii) Change in unit composition, such as the addition, loss of, or temporary absence of a unit member;
 - (iii) Change in residence;
 - (iv) Living arrangement;
 - (v) Disability status;
 - (vi) New employment;
 - (vii) Termination of employment; or
 - (viii) Change in the amount of monthly income, including:
 - (1) All changes in unearned income; and
 - (2) Changes in the source of employment, in the wage rate, or in employment status, such as part-time to full-time or full-time to part-time.
 - (a) For reporting purposes, full-time employment is considered at least 30 hours per week. The client must report new employment within 10 days of receipt of the first paycheck, and a change in wage rate or hours within 10 days of the change. To avoid adverse action, a client must prove good cause for any failure to report a change to the Department within 10 days. Unconfirmed statements do not constitute good cause;
- (C) Present his or her Medicaid card to providers;
- (D) Inform the medical provider and the Department of any third-party resources which may be liable for his or her medical expenses, in whole or in part, and cooperate in obtaining these third-party resources;
- (E) Enroll in a health plan and maintain enrollment if:
 - (i) One is available to the client;
 - (ii) The client is able to enroll on his or her own behalf; and
 - (iii) The Department has determined enrollment in the plan to be cost effective;
- (F) Reimburse to the Department or pay to the provider any third-party resources received directly for services payable by Medicaid;
- (G) Pay any unauthorized medical expenses;
- (H) Pay any required medical copayment;
- (I) Meet the requirements of Managed Care, if applicable; and
- (J) Cooperate with state and federal quality control.

005. APPLICATION.

005.01 APPLICATION SUBMITTAL. An application may be submitted by an applicant, an adult member of the applicant's immediate family, an adult member of the applicant's tax household, an authorized representative, or if the applicant is a minor or incapacitated, someone acting responsibly for the applicant. A medical provider may submit an application on behalf of an individual whom the provider is treating if the individual is unconscious or

otherwise unable to apply and does not have an existing power of attorney or court-appointed individual to apply on his or her behalf. An application may be signed in writing, by telephonic acknowledgment, or by electronic signature. An application may be submitted in person, by mail, by telephone, by fax, or by electronic submission. An application may be taken on behalf of a deceased person, including a miscarriage or a stillborn. If there is no one to represent a deceased person, the administrator of the estate may sign the application.

005.02 APPLICATION DATE. An application is considered valid the date it is received by the Department if it contains the applicant's name, address, and proper signature of the applicant or authorized representative.

005.03 APPLICATION WITH A DESIGNATED PROVIDER. An applicant or authorized representative may apply for Medicaid with a designated outreach provider or entity which has contracted with the Department to accept Medicaid applications at its location.

005.04 ALTERATIONS. The application, when completed and signed by the applicant or authorized representative, constitutes the applicant's own statement regarding eligibility. Information may be added to an application up to the decision date.

005.05 WITHDRAWALS. An applicant may voluntarily withdraw an application verbally or in writing, which will be confirmed by the Department sending a Notice of Action to the applicant or authorized representative documenting this voluntary withdrawal.

005.06 NEW APPLICATION. A new application is required after 90 days of ineligibility.

006. AUTHORIZATION FOR INVESTIGATION. The Department may request a release of information from the applicant or authorized representative when it appears information is incorrect or inconsistent, when the client is unable to furnish the necessary information, or for sample quality control verification.

007. RENEWALS. A redetermination of eligibility for continued Medicaid benefits must be completed every 12 months.

007.01 RENEWAL OF ELIGIBILITY FOR MODIFIED ADJUSTED GROSS INCOME (MAGI) PROGRAMS. A renewal of modified adjusted gross income (MAGI)-based eligibility shall be completed on the basis of information available to the Department without requiring information from the individual.

Information will only be required from the individual when not available through other sources. If information is not available to complete a renewal, a prepopulated renewal form shall be sent by the Department to the applicant or authorized representative. The completed renewal form and necessary verifications shall be returned within 30 days of the date the renewal form was sent.

007.02 RENEWAL OF ELIGIBILITY FOR NON-MODIFIED ADJUSTED GROSS INCOME (non-MAGI) PROGRAMS. A prepopulated renewal form shall be required every 12 months for non-modified adjusted gross income (non-MAGI) based eligibility renewals.

007.03 RENEWAL FOR SUPPLEMENTAL SECURITY INCOME (SSI) RECIPIENTS. A renewal form is not required at the time of renewal for clients who are receiving Supplemental Security Income (SSI).

007.03(A) RENEWAL DURING NON-PAY SUPPLEMENTAL SECURITY INCOME (SSI) STATUS. A renewal is not required for periodic non-pay status due to an extra pay period in a month.

007.03(B) SUPPLEMENTAL SECURITY INCOME (SSI) CLIENTS ELIGIBLE UNDER 1619(b). Supplemental Security Income (SSI) clients who are determined eligible for Medicaid by the Social Security Administration (SSA) under the provisions of 1619(b) are not required to complete a renewal form, and resources do not need to be verified.

007.04 INCOME REVIEW FOR AGED, BLIND, AND DISABLED (ABD) CLIENTS. For eligibility purposes, a review of income must be completed every 12 months. An income review is completed by the Social Security Administration (SSA) for Supplemental Security Income (SSI) clients, including those placed in 1619(b) status.

007.05 DISABILITY REVIEW FOR AGED, BLIND, AND DISABLED (ABD) CLIENTS. For clients whose disability status is approved by the State Review Team (SRT), a periodic review of the disability determination is required. Reviews of the disability determination are conducted consistent with the relevant portions of the Supplemental Security Income program and 20 Code of Federal Regulations (CFR) Part 416 Subpart I.

007.05(A) REQUIRED DISABILITY REVIEWS. A review of a beneficiary's disability status will occur in the following circumstances:

- (i) The previous determination period has ended;
- (ii) The beneficiary was determined disabled as a child, and is now turning age 18;
- (iii) The beneficiary begins, or returns, to work, and the income earned is greater than the Substantial Gainful Activity (SGA) amount published by the Social Security Administration (SSA);
- (iv) The Department receives credible evidence or reports that the beneficiary is no longer disabled; or
- (v) The beneficiary reports that the disability has ended.

007.05(B) REQUIRED DOCUMENTATION. The State Review Team (SRT) requires contemporaneous documentation of a beneficiary's health condition in order to determine whether the beneficiary meets the disability criteria. The medical documentation must be dated no more than 12 months prior to the date for which a disability determination is requested. The medical documentation must include an examination by a physician or another appropriate provider for the condition or conditions related to the disability determination dated no more than 12 months prior to the date for which a disability determination is requested. A failure to provide all necessary documentation will result in a denial of disability status.

007.05(C) DURATION OF DISABILITY DETERMINATION. The length of time during which a beneficiary is considered to be disabled is dependent on the beneficiary's medical condition. A shorter time period is assigned if the medical evidence indicates that the beneficiary's medical condition may improve in order to ensure that the beneficiary continues to meet the disability criteria. The beneficiary's condition, and length of the disability review period, is re-determined at each review. The review schedule is determined as follows:

- (i) A disability review will be conducted every 12 months when the disability may reasonably be expected to improve;
- (ii) A disability review will be conducted every three years if the disability is not permanent, but the possibility for medical improvement cannot be accurately predicted; or
- (iii) A disability review will be conducted every five years if it is unlikely that the medical condition will improve.

008. CONTINUOUS ELIGIBILITY.

008.01 CONTINUOUS ELIGIBILITY FOR PREGNANT WOMEN. Once a pregnant woman is determined Medicaid eligible, she remains continuously eligible through the post-partum period, regardless of her category of eligibility at the time the pregnancy began. Continuous eligibility does not apply to pregnant women covered during a period of presumptive eligibility.

008.02 CONTINUOUS ELIGIBILITY FOR A NEWBORN. Children born to Medicaid-eligible mothers are deemed eligible for Medicaid and remain Medicaid eligible for one year after birth. For 599 Children's Health Insurance Program (CHIP), see 477 Nebraska Administrative Code (NAC) 19.

008.03 CONTINUOUS ELIGIBILITY FOR CHILDREN. Children from birth through age 18 are eligible for six months of continuous Medicaid from the date of initial eligibility. Retroactive months do not count in the six months of continuous eligibility unless there is no prospective eligibility. For 599 Children's Health Insurance Program (CHIP), see 477 NAC 19.

008.03(A) CONTINUOUS ELIGIBILITY FOR CHILDREN (EFFECTIVE JANUARY 1, 2024). Children from birth through age 18 are eligible for one year of continuous Medicaid from the date of initial eligibility. Retroactive months do not count in the one year of continuous eligibility unless there is no prospective eligibility. For 599 Children's Health Insurance Program (CHIP), see 477 NAC 19.

008.04 CONTINUOUS ELIGIBILITY FOR HOSPITALIZED CHILDREN. Children who are eligible and enrolled in Medicaid and are receiving inpatient services covered by Medicaid on the date they lose eligibility due to age are continuously eligible until the end of their inpatient stay if the child would remain eligible but for attaining such age.

008.05 EXCEPTIONS TO CONTINUOUS ELIGIBILITY. Exceptions to continuous eligibility are:

- (A) A child attaining age 19 who does not meet another level of continuous eligibility, such as pregnancy or hospitalization;
- (B) The individual requests voluntary termination;
- (C) The individual ceases to be a state resident;
- (D) The agency determines that eligibility was determined incorrectly at the most recent determination or redetermination of eligibility because of agency error or fraud, abuse, or perjury attributed to the individual; or
- (E) The individual dies.

